

REMAND CASE DIARY

Part-I

P.S.: MAKTHAL.		:	Dist: NARAYANPET.
FIR No. 236/2021.		:	Date and place of occurrence: On 11.12.2021 at 16:00 hours at Burlal Ground, Panchadevpahad village of Makthalandal.
		:	Dated: 15-12-2021.
Offence U/s 324, 323, 353, 504, 506 r/w 34 IPC & Sec 3 of PDPP Act.			
1.	Date on which action was taken	:	On: 11-12-2021 at 19:30 Hours.
2.	Name of the complainant	:	Kammari Krishnaiah Chari s/o LateKammariBrahmaiah Chari, age: 39 years, caste: Kammari, occ: Farmer, r/o Panchadevpahad village of Makthalandal, cell No. 9912962853.
3.	Name of the accused	:	
A1:Vaddepally Padda Hanumaiah s/o Hanmanthu, age: 39 years, caste: Mudiraj, occ: Farmer, r/o H No. 1-58/1, Panchadevpahad village of makthal mandal- 7997590028.			
A2: Dayyam Narshimulu s/o Dayyam Thayappa, age: 26 years, caste: Mudiraj, occ: Farmer, r/o H No. 1-58/7, Panchadevpahad village of Makthal mandal- 9182638540.			
A3:Dayyam Gangappa s/o Dayyam Thayappa, age: 31 years, caste: Mudiraj, occ: Coolie, r/o H No. 1-58/7, Panchadevpahad village of Makthal mandal- 9640332604.			
A4:Vaddepally Ramulu s/o Late Thippanna, age: 56 years, caste: Mudiraj, occ: Farmer, r/o H No. 2-11, Panchadevpahad village of makthal mandal- 9121349069.			
A5:Gudeise Narshimulu s/o Gudise Koshtappa, age: 36 years, caste: Mudiraj, occ: Farmer, r/o H No. 3-32, Panchadevpahad village of Makthal mandal- 9640332604.			
A6: Raju @ Gudise Nagaraju s/o Gudise Kistappa, age: 31 years, caste: Mudiraj, occ: Farmer, r/o H No. 3-32, Panchadevpahad village of Makthal mandal- 9505706943.			
A7: Venkatamma @ Gudise Venkatamma w/o Gudise Kistappa, age: 44 years, caste: Mudiraj, occ: Farmer, r/o H No. 2/20, Panchadevpahad village of Makthal mandal- 9505706943.			
A8:Gangamma w/o Ashappa, age: 46 years, caste: Mudiraj, occ: Farmer, r/o H No. 2/20, Panchadevpahad village of Makthal mandal.			
A9:Girni Pandu s/o Girni Laxmanna, age: 33 years, caste: Mudiraj, occ: Farmer, r/o H No. 1-84, Panchadevpahad village of Makthal mandal- 9848526218.			
(The accused persons A1 to A9 arrested on: 15.12.2021).			
4.	Property lost	:	--
5.	Property recovered.	:	--

	Previous case diary, if the case diary is the not very first one.	:	FIR Dt.11.12.2021.
7.	Name of the deceased	:	--
8.	Name of the witnesses examined:-	:	
1.	Kammari Krishnaiah Chari s/o Bhrahmaiahachry, age: 39 years, caste: Kammari, occ: Farmer, r/o Panchadevpahad village of Makthaland, cell No. 9912962853.	: :	Complainant & Injured person.
2.	Kavali Balakistappa s/o Yellappa, age: 65 years, caste: Telugu, occ:VRA, r/o Panchadevpad village of Makthal mandal.	: :	Eyewitness.
3.	Kalal Satyanarayana Goud s/o Venkataiah Goud, age: 34 years, caste: Ediga, occ; Police Constable No. 1170 of Makthal PS, r/o Kothapally village and mandal .	: : :	Eyewitness& injured person.
4.	Karhavath Chandra Shekhar s/o Nagya Naik, age: 26 years, caste: Lambada, occ: PC 1043, PS Makthal, r/o Tellarallapally Thanda, Pangalmandal.	: :	Eyewitness.
5.	Dhannadi Venkataiah s/o Eedeppa, age: 48 years, caste: Telugu, occ: Farmer, r/o Panchadevpad village of Makthaland.	: : :	Eyewitness.
6.	Kavali Ramulu s/o Ramanna, age: 55 years, caste:Mudiraj, occ: Farmer, r/o Panchadevpad village of Makthaland.	: : :	Eyewitness.
7.	Eediga Anjaneyulu Goud s/o Hanmanthu, age: 43 years, caste: Ediga, occ: Farmer, r/o Panchadevpad village of Makthaland.	: : :	Eyewitness.
8.	Gudise Dattu s/o Narsimulu, age: 28 years, caste: Telugu, occ: Farmer, r/o Panchadevpad village of Makthaland.	: : :	Eyewitness.
9.	Jetram Veeresh s/o Jetram Kishtaiah, age: 30 years, caste: Mudiraj, occ: Junior Panchayat Secretary, Panchadevpad village, r/o Utkur village and mandal, cell No. 7386677246	: : :	Circumstantial witness.
10.	GuddiLingappa s/o Hanmanna, age: 60 years, caste: SC, occ: Farmer, r/o Panchadevpad village of Makthaland, cell No. 9705798051.	: : :	Panch for scene of offence.
11.	KammariBalaswamy s/o Ramakistaiah, age: 48 years, caste: Kammari, occ: Welder, r/o Panchadevpad village of Makthaland, cell No.9705947125.	: : :	Panch for scene of offence.
12.	Dr. S.Gouthami, Civil Assistant Surgeon, Community	:	Treated the injured

Health Center, Makthal, Narayanpet District,

A.Ramulu, Sub-Inspector of Police, Makthal PS of
Narayanpet district, cell No. 9440740334.

: persons LWs, 1 & 2.

: 2nd I.O & Arrested

: the accused.

IN THE COURT OF JUDICIAL MAGISTRATE OF FIRST CLASS AT NARAYANPET,

Honoured Sir,

The place of offence reported in this case is from Panchadevpahad village of Makthalandal, which falls under Makthal Police Station, having jurisdiction of this Hon^{ble} court.

The brief facts of the case are that on 11.12.2021 at 19:30 hours, the complainant Kamhari Krishnaiah Chari s/o Late Kamhari Brahmaiah Chari, age: 39 years, caste: Kamhari, occ: Farmer, r/o Panchadevpahad village of Makthalandal, cell No. 9912962853, came to PS and lodged a petition, in which he stated that his wife Kamhari Kalpana elected as Sarpanch of Panchadevpahad Village earlier Elections, today i.e. on 11.12.2021 in his village person Gudise Nagappa was succumbed, for that the deceased family members searched the burial pit, in this regard they approached his wife Kalpana, due to ill health of his wife, he along with village VRA Balakistaiah went to that place at about 12:00 hrs, and suggested to a place and arranged the pit of last ride of deceased Gudise Nagappa, but one person by name Dayyam Hanmanth was replied that didn't funeral the deceased that place and he stated that they will funeral at entrance of the burial ground and also they are arranged the pit at entrance, after that he along with their villager elders i.e. Dannadi Venkataiah, Kavali Ramulu, Anjaneyulu Goud, Gudise Dattu, and other were agreed to change the pit, which is dig by Dayyam Hanmanth and arranged other pit with JCB, further at about 1600 hours the deceased person's family members came to burial ground, meantime the deceased person relative i.e. Vaddepally Padda Hanumaiah, 2. Dayyam Narshimulu, 3. Dayyam Gangappa, 4. Vaddepally Ramulu, 5. Gudise Narshimulu s/o Kistappa and others picked up quarrel with him, abused him in filthy language, by saying as why are you change pit, one person Vaddepally Pedda Hanmaiah taken one brick and beat him with brick and turned his shirt and Dayyam Gangappa also beat him with stone and remaining persons beat him with

persons, kicked with legs, at same time when the police party came to there, but said persons abused the police party in filthy language and obstructed their duties, then again drill the closed pit and buried the dead body at burial ground entrance pit. Hence requested to take a legal action as per law.

On receipt of the above petition, LW-13 (S.I of Police, Makthal PS), registered a case in Cr.No.236/2021 U/s 324, 323, 353, 504, 506 r/w 34 IPC, Issued FIRs and dispatched the same to all the concerned officers and the Hon'ble court and took up investigation.

During the course of investigation, LW-13 examined and recorded the statements of the complainant LW-1 and LWs 2 to 4 u/s 161 (3) Cr.P.C detail in Part-II CDs. Due to late hours the next day i.e on 12.12.2021 the LW.12 visited the scene of offence, which is located at the burial ground of panchadevpad village of Makthamandal, there secured the presence of two mediators i.e LWs 10 & 11 and conducted scene of offence panchanama and drawn rough sketch and also seized one stone and one brick in the presence of mediators, then examined and recorded the statements of LWs 5 to 8 details in Part-II CDs. The next day i.e on 12.12.2021 he proceeded to Panchadevpad village of Makthal mandal and there examined and recorded the statement of LW.9 detail in Part-II CD and also collected certificate from LW-9.

While the investigation is in progress on. 15-12-2021 the LW-13 received a credible information that the accused persons came to Panchadevpad village and immediately the LW-13 along with the staff proceeded to that place and apprehended the accused persons A1 to A9 at 14:00 hours, brought to the Police station at 15:30 hours and on further interrogation the accused persons confessed the guilt of offence admitted their guilty. As such affected their arrest and issued arrest memo informed the grounds of the arrest and also informed to their relatives by serving 50 Cr.P.C& 50 (A) Cr.P.C notices. A copy of FIR and remand case diary has been furnished to the accused under proper acknowledgement.

Reasons for arrest:

- 1) If the accused persons releasing on bail, they create law & order problem in village.
- 2) If the accused persons releasing on bail, he likelihood to commit same offence.
- 3) If he released on bail the accused persons tamper the witness.
- 4) If he released on bail he may abscond from village.
- 5) When the LW13 served the 41-A Cr.PC notice against accused persons, but the accused persons did not take said notice.

Hence it is necessary for the prosecution to arrest the accused A1 to A9 to complete the investigation in proper lines.

The investigation so far done revealed that the complainant Kammari Krishnaiah Chari s/o LateKammariBrahmaiah Chari, age: 39 years, caste: Kammari, occ: Farmer, is inhabited of Panchadevpahad village of Makthalandal, is an injured person and he is husband of Panchadevpad village sarpanch by name Kalpana, the LW-2 is VRA of Panchadevpad village, the LW-3 is injured and LW-4 both are police constables of Makthal PS, the LWs 5 to 8 are eyewitness and the LW-9 is a Junior Panchayath secretary of Panchadevpad village. The accused persons A1 to A9 are relatives of deceased person Gudise Nagappa r/o Panchadevpad village. On 11.12.2021 one person Gudise Nagappa r/o Panchadevpad village was succumbed, for that the deceased family members searched the burial pit, in this regard they approached LW-1's wife who is the sarpanch of their village, due to ill health of village Sarpanch Kalpana, her husband (LW.1) along with village VRA (LW.2) went to that place at about 12:00 hours and suggested to a place and arranged the pit of last ride of deceased Gudise Nagappa, but one person by name Dayyam Hanmanth was replied that didn't funeral the deceased that place and he stated that they will funeral at entrance of the burial ground, they are arranged the pit at entrance illegally, after that the LW.1 along with LWs 5 to 8 and other were agreed to change the pit, which is dig by Dayyam Hanmanth and also arranged other pit with JCB. After that the same day at about 16:00 hours the deceased person's family members came to burial ground, meantime the deceased person relatives/ accused persons A1 to A9 were criminally trespassed in to burial ground, picked up quarrel with LW-1, abused him in filthy language, by saying as why are you change pit, the A1 taken one brick and beat him with brick and

ed his shirt and A2 also beat him with stone and remaining persons beat him with hands, kicked with legs and threatened that they will kill him, at same time when the police party i.e LW.3 & 4 were came to there, in order to salve the problem, but the accused persons abused the police party in filthy language and obstructed their legitimate duties, obstructed their vehicle and the accused A6 beat the LW.3 with stone, resulted the LW.1 & 3 were sustained injuries, then again drill the closed pit and buried the dead body at burial ground entrance pit. Thus, the prima-facie is well established against the accused persons A1 to A9 u/s 324, 323, 353, 504, 506 r/o 34 IPC and Sec 3 of PDPP Act.

The arrested accused persons A1 to A9 herewith produced before the Hon'ble Court under proper escort with a pray to send him for judicial remand Custody as the court deems fit.

Hence the remand report.


(A.RAMULU),
Sub Inspector of Police,
Makthal P.S.

- Encl:1.Part-II statements of LWs 1 to 9.
2.Crime detail form.
3.Certificate of Junior Panchayath Secretary (LW-9).
4.Notice U/s 50 and 50-A Cr.P.C.
5.Arrest memo against accused A-1 to A-9.
6.Fitness certificate of accused persons.

Escort: Sub-Inspector polecell.PC1043.PC799.WPC 233.of Makthal PS.